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COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3403

and
Stewart and Green of the
Senate

SENATE FLOOR VERSION - HB3403 SFLR
(Bold face denotes Committee Amendments)

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless
4 there is created a duplication in numbering, reads as follows:

5 This act shall be known and may be cited as the "Oklahoma
6 Biosolids Land Application Research Pilot Program Act".

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless
9 there is created a duplication in numbering, reads as follows:

10 A. There is hereby created at Oklahoma State University (OSU)
11 the Oklahoma Biosolids Land Application Research Pilot Program. The
12 pilot program shall be administered by the Department of
13 Environmental Quality (DEQ) in cooperation with the OSU Division of
14 Agricultural Sciences and Natural Resources and in coordination with
15 the OSU College of Engineering, Architecture and Technology, the OSU
16 Department of Environmental Science, and the OSU Cooperative
17 Extension Service. The pilot program shall operate for an initial
18 three-year period.

19 B. The pilot program shall:

20 1. Identify and approve study plots on agricultural lands,
21 including, but not limited to, OSU-owned research farms and, as
22 appropriate, cooperating private farms and farms that have a history
23 of using biosolids;

24 2. Develop biosolids application protocols, including:

- a. nutrient content evaluation,
- b. pathogen and contaminant screening, including perfluoroalkyl and polyfluoroalkyl substances (PFAS), heavy metals, and pharmaceuticals,
- c. application rates, and
- d. soil amendment practices;

3. Conduct agronomic research, including crop yield impacts, soil health changes, and nutrient cycling;

4. Conduct environmental impact studies, including:

- a. surface and groundwater monitoring,
- b. soil residual testing, and
- c. air quality, odor, and vector considerations;

5. Assess regulatory models, including best management practices, permitting options, and compliance structures suitable for this state;

6. Coordinate with the DEQ and may utilize biosolids supplied by municipal wastewater treatment facilities of this state that meet DEQ and United States Environmental Protection Agency (EPA) standards; and

7. Provide outreach and education to farmers, ranchers, conservation districts, and municipalities in this state through OSU Extension programs.

C. An electronic report shall be submitted annually to the Governor, the President Pro Tempore of the Senate, the Speaker of

1 the House of Representatives, and the DEQ regarding findings, data,
2 and recommendations. Annual reports shall be submitted no later
3 than December 1 and include:

- 4 1. Agronomic outcomes;
- 5 2. Environmental monitoring results;
- 6 3. Risk assessments;
- 7 4. Recommendations for statewide standards or rules; and
- 8 5. Cost-benefit analysis for farmers and municipalities.

9 D. OSU may partner with private agricultural landowners who
10 volunteer to participate in research trials. OSU shall secure
11 written consent, ensure DEQ compliance, and provide guidelines for
12 application, monitoring, and sampling. No landowner shall be held
13 liable for environmental impacts resulting solely from adherence to
14 OSU protocols developed under the pilot program.

15 E. Biosolids applied under the pilot program shall be exempt
16 from state permitting otherwise required under environmental or land
17 application rules, only to the extent necessary to conduct
18 controlled research, and only when research protocols meet or exceed
19 DEQ and EPA requirements. OSU shall coordinate with the DEQ to
20 ensure proper recordkeeping and transport documentation.

21 F. The pilot program may be funded by legislative
22 appropriations, federal research grants, municipal contributions,
23 private or industry research partnerships, or in-kind contributions
24 of biosolids or laboratory services. Funds for administering the

1 pilot program shall be deposited into the Oklahoma Biosolids Land
2 Application Research Pilot Program Act Revolving Fund created in
3 Section 3 of this act.

4 G. 1. Upon completion of the three-year pilot program, if the
5 findings, data, and recommendations in the reports required pursuant
6 to subsection C of this section indicate that land application of
7 biosolids is considered to be safe and cost-effective, the DEQ shall
8 continue to issue new permits and renewals for such application of
9 biosolids in accordance with the report recommendations.

10 2. Municipalities shall require the use of microbial
11 biotechnology approved by the DEQ to reduce the volume of biosolids
12 at a wastewater treatment plant. Additionally, such municipalities
13 shall adopt technology approved by the DEQ to reduce biosolid odor
14 and dry solid matter at a wastewater treatment plant.

15 H. 1. Upon completion of the three-year pilot program, if the
16 findings, data, and recommendations in the reports required pursuant
17 to subsection C of this section indicate that land application of
18 biosolids would be a detriment to the health and safety of this
19 state, such application shall be prohibited on and after December 1,
20 2029, and the DEQ shall not issue any new permit for the land
21 application of biosolids. Renewal of permits for land application
22 shall be left to the discretion of the DEQ for the purpose of aiding
23 municipalities with the reduction of land application of biosolids.

1 2. Not later than December 1, 2027, all persons or entities
2 permitted to land apply biosolids shall reduce the amount of such
3 material land applied by at least twenty-five percent (25%).

4 3. Not later than December 1, 2028, all persons or entities
5 permitted to land apply biosolids shall reduce the amount of such
6 material land applied by at least fifty percent (50%).

7 4. Not later than December 1, 2029, any person or entity
8 permitted to land apply biosolids shall submit a plan for full
9 cessation of such actions to the DEQ. The plan shall be compiled
10 and submitted in the form and manner prescribed by the DEQ.

11 I. The DEQ shall promulgate rules to implement the provisions
12 subsections G and H of this section.

13 J. For the purposes of this section, "biosolids" means treated
14 sewage sludge derived from municipal or domestic wastewater
15 treatment plants.

16 SECTION 3. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless
18 there is created a duplication in numbering, reads as follows:

19 There is hereby created in the State Treasury a revolving fund
20 for the Department of Environmental Quality to be designated the
21 "Oklahoma Biosolids Land Application Research Pilot Program Act
22 Revolving Fund". The fund shall be a continuing fund, not subject
23 to fiscal year limitations, and shall consist of all monies received
24 by the Department from appropriations, apportionments, donations,

1 and federal grants received for the purpose of conducting the
2 provisions of the Oklahoma Biosolids Land Application Research Pilot
3 Program created pursuant to Section 2 of this act. All monies
4 accruing to the credit of the fund are hereby appropriated and may
5 be budgeted and expended by the Department for the purpose provided
6 for in this section. Expenditures from the fund shall be made upon
7 warrants issued by the State Treasurer against claims filed as
8 prescribed by law with the Director of the Office of Management and
9 Enterprise Services for approval and payment.

10 SECTION 4. This act shall become effective November 1, 2026.

11 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
12 April 9, 2026 - DO PASS AS AMENDED BY CS
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